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Case Number: 24NWCV01744 Hearing Date: September 15, 2026 Dept: L

JOSE

ANTONIO SUCILLA CARDENAS vs CHEDRAUI USA, INC.

CASE NO.: 24NWCV01744

HEARING: September 15, 2026 @ 9:30

a.m.

#17

TENTATIVE ORDER

Defendant Chedraui USA, Inc.'s

Motion for Summary Judgment is GRANTED.

Defendant to give notice.

Background

This is a premises liability action regarding property located at 9320 Slauson Ave Pico Rivera, CA 90660 ("Premises"). On June 4, 2024, Plaintiff Jose Antonio Sucilla Cardenas ("Plaintiff") filed this action against Defendant Chedraui USA, Inc., doing business as El Super, ("Defendant") and Does 1 to 50. The gravamen of the Complaint is as follows: "Plaintiff was assigned to security for the Defendant. The Plaintiff was asked by a store associate to assist him in moving broken down carts roughly 6 feet off the floor. In the process, the Plaintiff fell while carrying the carts and ultimately was injured at the [Premises]."

(Compl., p. 4.) The Complaint alleges two causes of action for 1) General Negligence, and 2) Premises Liability.

On August 24, 2024, Defendant filed its Answer.

Defendant now moves for summary judgment, or in the alternative, summary adjudication on all causes of action.

On August 27, 2026, the Court continued the hearing on this Motion to today's date on its own motion. (8/27/26 Minute Order.)

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a defendant has met its "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a moving party has satisfied

the initial burden of proof, the burden “shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist.” (Ostayan v. Serrano Reconveyance Co. (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by Black Sky Cap., LLC v. Cobb (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Discussion

The parties primarily dispute two issues: 1) whether the Privette doctrine and its exceptions apply to bar Plaintiff’s claims, and 2) if the Privette doctrine does not apply, whether Plaintiff can establish a triable issue of fact as to his claims based on a dangerous condition.

The Court will discuss each issue in turn.

Application of the Privette Doctrine and its Exceptions

Defendant argues that Plaintiff’s causes of action are barred by the Privette doctrine, established by the seminal case Privette v. Superior Court (“Privette”) (1993) 5 Cal.4th 689. The Privette doctrine stands for the proposition that, when employees of independent contractors are injured at a worksite, they generally cannot sue the party that hired the independent contractor. Workers compensation provided for by the independent contractor employer is the employees’ exclusive remedy. Here, Plaintiff was an employee of Defender Private Security which contracted with Defendant for security guard services. (Taylor Decl., ¶¶ 3-4, Exhs. B-C; Cardenas Depo., 14:19-25, 15:1-14, 18:23-19:12.) Plaintiff is pursuing a workers’ compensation claim for his injuries that are the subject of this case. (Taylor Decl., ¶ 9, Ex. H.) Thus, Plaintiff’s claim is barred by the Privette doctrine.

Defendant preemptively argues that the “negligent exercise of retained control” exception to the Privette doctrine does not apply here. Such exception is established in the case of Hooker v.

Department of Transportation (“Hooker”) (2002) 27 Cal.App.4th 198.

The Hooker case stated that the hirer can be liable to an independent contractor’s employee if the hirer retains control over safety conditions on the job site and exercises that control in a manner that “affirmatively contributes” to the employee’s injury. (Id. at p. 214.) However, if the hirer passively permits an unsafe condition to exist on the job site, such conduct is not an “affirmative contribution” to the employee’s injury, and the hirer cannot be liable. (Id. at pp. 214-215.) Here, Plaintiff admitted that he fell due to his foot failing when he attempted to reach the carts on the shelf. (Taylor Decl., ¶ 4, Exh. C; Cardenas Depo., 64:20-65:7, 66:7-66:18.) Plaintiff admitted that he is not aware of any defects or dangerous conditions at the premises. (Taylor Decl., ¶ 4, Exh. C; Cardenas Depo., 68:20-69:7.) At most, Plaintiff voluntarily responded to a request for assistance by a coworker. (Taylor Decl., ¶¶ 3-5, Exhs. B-D; Cardenas Depo., 60:22 61:15, RFA No. 45.) Thus, Plaintiff’s injury was not caused by any dangerous condition or “affirmative contribution” by Defendant.

Further, Defendant argues that the “concealed hazard exception” to the Privette doctrine does not apply to this case. That exception states that a hirer/landowner may be held liable for an injury of an independent contractor employee if the landowner knew of a concealed preexisting hazardous condition on its property, the contractor did not know and could not have reasonably discovered this hazardous condition, and the landowner failed to warn the contractor about the condition. As admitted by Plaintiff and as established by the video footage, no dangerous condition existed. (Taylor Decl., ¶¶ 4, 8, Exhs. C, G; Cardenas Depo., 68:20-69:7.) Even if a dangerous condition existed, Plaintiff should have or reasonably could have realized potential risks of reaching for carts on top of a tall shelf. Thus, the “concealed hazard exception” does not apply.

In opposition, Plaintiff argues that the Privette doctrine does not apply because Plaintiff was performing work unrelated to his contracted security services when he was injured. Further, the policies behind the Privette doctrine would not be furthered by application of the doctrine to this case. Specifically, independent contractors are in the best position to provide workers’ compensation insurance for injuries that occur while the worker is performing contracted work. The hirer indirectly pays for such insurance in the negotiated contract price. Here, Plaintiff was injured while performing non-contracted work—i.e., grocery store-related work. Plaintiff’s employer, Defender

Private Security, did not contract with Defendant with the expectation that Plaintiff would be performing grocery store-related tasks. Thus, Defendant, rather than Plaintiff's employer, is in a better position to compensate Plaintiff.

Alternatively, assuming that the Privette doctrine applies, Plaintiff argues that the "retained control" exception applies. Specifically, Defendant retained control of the manner in which Plaintiff could perform his security duties. As a result, Plaintiff treated "requests" from the store employees as a part of his job duties. (Alberts Decl., ¶ 3, Exh. 1; Cardenas Depo., 30:1-25, 34:14-35:4.) Plaintiff performed such store-related tasks in the middle of performing security services, two to three times each week. (Alberts Decl., ¶ 3, Exh. 1; Cardenas Depo., 32:9-13.) Further, in directing Plaintiff to reach the shopping carts, Defendant (through its employee), "affirmatively contributed" to Plaintiff's injury.

In reply, Defendant notes that the opposition inconsistently argues that 1) Plaintiff was acting outside of the scope of his contracted duties at the time he was injured, and 2) Plaintiff treated the cashier's request as a duty, which led to his injury. Defendant argues that it did not affirmatively contribute to Plaintiff's injury. Plaintiff himself testified that the cashier asked him for help in retrieving the carts from the shelf. (Alberts Decl., ¶ 3 Exh. 1, 60:19-25, 63:2-5.) A hirer is not liable under the "retained control" exception unless there is evidence that the hirer retained control over the contractor's assigned work. Here, "[n]othing about the cashier's request for help gave El Super control over the manner in which DPS or its employees performed contracted security services." (Reply, 3:9-11.)

"The Privette doctrine holds that a hirer generally delegates to an independent contractor all responsibility for workplace safety and is not liable for injuries sustained by the contractor or its workers while on the job." (Gonzalez v. Mathis ("Gonzalez") (2018) 12 Cal.5th 29, 40.)

The "retained control" exception was recognized in *Hooker*, supra, 27 Cal.App.4th 198, 202. The exception applies if: (1) the hirer retains control over the manner in which the contractor performs the work; (2) the hirer actually exercises its retained control by involving itself in the work such that the

contractor is not entirely free to do the work in its own manner; and (3) the hirer's exercise of retained control affirmatively contributes to the worker's injury. (*Sandoval v. Qualcomm Incorporated* ("Sandoval") (2021) 12 Cal.5th 256, 276-277.) Under this exception, the hirer's delegation of tort duties to the independent contractor can be seen as "incomplete" or "only partial[]" because it retains control over some aspect of the work and actually exercises that retained control. (*Id.* at pp. 271, 283.)

;

The "concealed hazard" exception was recognized in *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 664, as modified (Mar. 1, 2006). This exception applies if the hirer is also an owner or possessor of land, and if "the landowner knew, or should have known, of a latent or concealed preexisting hazardous condition on its property, the contractor did not know and could not have reasonably discovered this hazardous condition, and the landowner failed to warn the contractor about this condition." (*Id.* at p. 664.) Under this exception, the hirer's delegation of tort duties can be seen as "ineffective" because the independent contractor cannot protect its workers against a hazard it does not know about and could not reasonably discover. (*Sandoval, supra*, 12 Cal.5th at p. 271).

"[T]he Privette doctrine gives rise to a rebuttable presumption that affects the burden of producing evidence. If the moving party establishes that it hired an independent contractor to perform certain work, and that the plaintiff is an employee of the contractor who was injured in the course of the work, the burden shifts to the opposing party to come forward with evidence raising a triable issue of fact as to whether an exception to the Privette doctrine applies." (*Degala v. John Stewart Co.* ("Degala") (2023) 88 Cal.App.5th 158, 166-167.)

Here, the Court is not persuaded that Defendant has met its burden in proving that the Privette doctrine applies. Both parties generally agree that the cashier's request and Plaintiff's injury occurred outside of Plaintiff's contracted duties as a security guard. The Court relies on the following evidence:

- At

the time of Plaintiff's injury, he acted as a security guard with duties including protecting the store and its customers/employees. (See Taylor Decl., ¶¶ 3-4, Exhs. B-C; Cardenas Depo., 29:1, 31:20, 35:24-36:5.)

- The

agreement between the parties shows that Plaintiff was contracted to provide security services only, not grocery store-related tasks. (Ibid.)

- Plaintiff

testified that the cashier merely asked for help in reaching for the carts on the shelf. (See Alberts Decl., ¶ 3 Exh. 1, 60:19-25, 63:2-5.)

- Plaintiff

admitted that he "voluntarily decided to help the employee at the SUBJECT LOCATION to move the ROLLING BASKET down from the top of the shelf." (Taylor Decl., ¶ 5, Exh. D., RFA No. 45.)

- Plaintiff

also admitted that 1) his "duties at the time of the incident did not include moving shopping carts," and 2) his "job duties did not include taking orders from other employees at the [store]," and 3) he was "not required in [his] role as a security guard at the time of the Incident to move any shopping carts from the top of a shelf." (Taylor Decl., ¶ 5, Exh. D., RFA Nos. 37-38, 42.)

There is otherwise no evidence that the cashier's request was a part of Plaintiff's contracted duties. Plaintiff's subjective belief that the cashier's request was a duty, not a favor, is irrelevant. Overall, the Court finds that Defendant has failed to demonstrate that Plaintiff "was injured in the course of the work" he was contracted for. (See Degala, supra, 88 Cal.App.5th at p. 167.) Thus, the Privette doctrine does not apply here.

Relatedly, authority on the "retained control" exception further sheds light why the Privette doctrine does not apply. "[R]etained control" refers specifically to a hirer's authority over work entrusted to the contractor, i.e., work the contractor has agreed to perform. . . A hirer's authority over noncontract work — although potentially giving rise to other tort duties — thus does not give rise to a retained control duty unless it has the effect of creating authority over the

contracted work. [Citation.] (Sandoval, supra, 12 Cal.5th at pp. 274–275.)

In other words, the retained control exception only applies if the hirer retains control of the manner in which contracted work is performed. Here, the Court finds that the cashier's request 1) was unrelated to the contracted work (security services), and 2) did not constitute control over the manner in which his security duties were performed. For example, the cashier did not tell Plaintiff to use certain equipment or methods in protecting the store.

Accordingly, the Court finds that

Defendant has failed to meet its burden of proof in establishing that the Privette doctrine bars Plaintiff's claims.

Negligence and Premises Liability

"The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

Defendant separately argues

that Plaintiff cannot establish all elements of his negligence and premises liability claims. Firstly, Plaintiff cannot establish the element of duty because Defendant was not Plaintiff's employer and had no control over his work. Second, Plaintiff cannot establish the elements of breach and causation. As to breach/existence of a dangerous condition, Plaintiff admitted that 1) he is not aware of any defect or dangerous condition at the Premises and 2) the shelf did not move when he was bringing down the carts. (Taylor Decl., ¶ 4, Exh. C; Cardenas Depo., 66:7-66:18, 68:20-69:7.) Plaintiff further admitted that he fell because his foot failed him. (Taylor Decl., ¶ 4, Exh. C; Cardenas Depo., 64:20-65:7, 66:7-66:18.) Thus, Plaintiff contributed to his own damages by agreeing to help someone who was not his manager (Taylor Decl., ¶ 5, Exh. D, RFA No. 45) and by not using any stool or ladder to help him reach the shopping carts (Taylor Decl., ¶ 4, Exh. C; Cardenas Depo., 64:20 65:7, 66:7-66:18). Lastly, Defendant argues that Plaintiff voluntarily assumed the risk of injury—he was aware of the height of the shelf and could plainly see the shopping carts. (Taylor Decl., ¶ 6, Exh. E.)

In opposition, Plaintiff

argues that Defendant, as owner of the Premises, owed a non-delegable duty to make the Premises safe. Plaintiff asserts that a triable issue of fact exists

as to the elements of breach and causation. Firstly, it is a question of fact as to whether the shopping carts stacked on top of a 6-foot shelf, without warning to obtain a stool or ladder, constituted an “unsafe” or “dangerous” condition that led to the Plaintiff’s injuries. Further, the assumption of risk doctrine does not apply. Rather, any negligence by Plaintiff should be assessed in the context of assigning each party’s proportion of fault.

In reply, Defendant argues that Plaintiff “attempts to manufacture a triable issue of fact by focusing on whether the stacked carts on a shelf could be characterized as an ‘unsafe’ or ‘dangerous’ condition.” (Repl., 6:12-14.) However, such issue is immaterial where Plaintiff’s own testimony establishes that there is no causation between the alleged unsafe condition (i.e., the stacked shopping carts) and the injury.

The Court finds that, where the Privette doctrine does not apply, Defendant owed a regular duty of care to maintain its premises as landowner. It is irrelevant that Defendant was not Plaintiff’s employer. “It is well established in California that although a store owner is not an insurer of the safety of its patrons, the owner does owe them a duty to exercise reasonable care in keeping the premises reasonably safe.” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.)

The Court further finds that Defendant has not met its burden in disproving the element of breach/existence of a dangerous condition. Defendant only cites Plaintiff’s testimony that no dangerous condition existed and that the shelf did not move when he was reaching for and bringing down the baskets. (Taylor Decl., ¶ 4, Exh. C; Cardenas Depo., 66:7-66:18, 68:20-69:7.) Defendant’s evidence is insufficient. For example, Defendant provides no expert evidence that the shopping carts were stacked according to industry standards or that the shelf was stable.

However, the Court finds that Defendant has met its burden as to the issue of proximate causation, and Plaintiff fails to establish a triable issue of fact as to this element. Plaintiff admitted that he fell because his foot failed under him. (Taylor Decl., ¶ 4, Exh. C; Cardenas Depo., 64:20-65:7, 66:7-66:18.) Plaintiff does not necessarily dispute this fact. Plaintiff only argues that Plaintiff fell because he was “ordered” by a cashier to bring a cart down, he had never gotten a cart down before, he is 5-feet, 9-inches tall, the shelf was 1 foot taller than him, there were six to nine carts on the shelf, each cart had 4 or 5 carts folded inside of each

cart, he didn't know there were more carts inside the cart, and the baskets weighed about 10 to 15 pounds each. (See Plaintiff's Response to Sep. Statement, UMF No. 11.) Plaintiff also notes that he was not trained to bring down the shopping carts. (See Plaintiff's Response to Sep. Statement, UMF No. 10.) Plaintiff only cites to his own deposition testimony. The Court finds that Plaintiff's evidence bears on whether a dangerous condition existed, not whether the condition caused Plaintiff's injury.

Upon closer inspection of Plaintiff's testimony, when asked whether he could see the condition of the stacked shopping carts on the shelf, Plaintiff stated the following: "I saw them, but -- I thought that I could handle them, but I couldn't. My -- my foot ended up folding, my toes broke, and at that time, they fell on top of me." (Taylor Decl., ¶ 4, Exh. C; Cardenas Depo., 64:20-24.) Such testimony refutes any theory by Plaintiff that 1) he could not fully appreciate the risk of reaching for the shopping carts and 2) the shopping carts caused the fall.

Further, the Court notes that, the fact that Plaintiff had never performed this task and was not trained to perform such task prior to the incident is further evidence that the task was not within his contracted work. As discussed previously, the Court is not persuaded that Plaintiff was acting within his contracted duties when the incident occurred.

Therefore, the Court grants summary judgment on grounds that Plaintiff has failed to establish a triable issue of fact as to causation, a necessary element of general negligence and premises liability claims.

Conclusion

Based on the foregoing, Defendant's Motion for Summary Judgment is granted.